

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #02	CCRB Case #: 201707360	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 09/07/2017 4:15 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/7/2019	Precinct: 67
Date/Time CV Reported Fri, 09/08/2017 10:56 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 09/08/2017 10:56 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Sophia Rodriguez	09718	937416	067 PCT
2. SGT Tonica Corlette	5056	933977	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Yanique Jean	05620	936082	067 PCT
2. POM Jonathan Colon	28889	952608	067 PCT
3. POM Steven Farrice	22858	952721	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Tonica Corlette	Abuse: Sergeant Tonica Corlette entered § 87(2)(b) § 87(2)(b) in Brooklyn.	A . Exonerated
B . POF Sophia Rodriguez	Discourtesy: Police Officer Sophia Rodriguez spoke discourteously to § 87(2)(b)	B . Unsubstantiated

Case Summary

On September 8, 2017, § 87(2)(b) filed this complaint in-person at the CCRB.

On September 7, 2017, at approximately 4:15 a.m., Sergeant Tonica Corlette, Police Officer Sophia Rodriguez, Police Officer Yanique Jean, Police Officer Jonathan Colon, and Police Officer Steven Farrice, all from the 67th Precinct, arrived at § 87(2)(b) home, located at § 87(2)(b) § 87(2)(b) in Brooklyn, in response to an Order of Protection violation complaint received from one of § 87(2)(b) sisters. After officers knocked on the door and identified themselves, § 87(2)(b) opened the door.

The officers verbally confirmed § 87(2)(b) identity, and Police Officer Rodriguez allegedly requested that the officers be permitted to enter the apartment to speak with § 87(2)(b). § 87(2)(b) § 87(2)(b) provided verbal consent for all of the officers to enter her apartment, which they did (**Allegation A**). § 87(2)(b) husband, § 87(2)(b) and children, who were minors at the time of the incident, were sleeping. § 87(2)(b) discussed the incident with the officers, and § 87(2)(b) awoke. § 87(2)(b) was escorted out of the apartment and into an elevator, where she discussed her relationships with her sisters with the officers. Police Officer Rodriguez allegedly said, “That shit is going on in my family right now” (**Allegation B**). § 87(2)(b) was transported to the 67th Precinct stationhouse, where she was arrested on a charge of § 87(2)(b). § 87(2)(b) was not in a position to witness any of the FADO allegations.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to § 87(2)(b) arrest.
- On October 12, 2017, a Notice of Claim inquiry was sent to the NYC Comptroller’s Office, and the response will be added to the case file upon receipt (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b) first CCRB complaint (Board Review 03). § 87(2)(b)
- Sergeant Corlette has been a member of the NYPD for 13 years and has had 10 prior allegations against her in three cases, two of which were substantiated in two cases. In CCRB case number 201401347, a retaliatory summons allegation was substantiated with a Board recommendation of Formalized Training and an NYPD Disposition and Penalty of Instructions. In CCRB case number 201605977, an entry allegation was substantiated with a Board recommendation, NYPD Disposition, and NYPD Penalty of Formalized Training. § 87(2)(g)
- Police Officer Rodriguez has been a member of service for 12 years and has had two prior allegations against her, one of which was substantiated, in two cases. In CCRB case number 201605977, an entry allegation was substantiated with a Board recommendation, NYPD Disposition, and NYPD Penalty of Formalized Training. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(g)

Allegation A –Abuse of Authority: Sergeant Tonica Corlette entered

§ 87(2)(b)

§ 87(2)(g) in Brooklyn.

§ 87(2)(b) was interviewed on September 8, 2017. § 87(2)(b) provided a telephone statement on September 21, 2017 (Board Review 04). Sergeant Corlette and Police Officer Rodriguez were interviewed at the CCRB on October 5, 2017.

It is undisputed that after § 87(2)(b) opened her apartment entry door and confirmed her identity, she provided verbal consent for the officers to enter the apartment. Neither § 87(2)(b) nor § 87(2)(b) alleged that they denied or revoked this consent at any point. It is therefore recommended that **Allegation A** be **Exonerated**.

Allegation B –Discourtesy: Police Officer Sophia Rodriguez spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) stated that after entering her building’s elevator with officers, Police Officer Jean and Sergeant Corlette engaged in a discussion with her regarding her sisters being jealous of her because of her light-skinned complexion. During this discussion, Police Officer Rodriguez said, “That shit is going on in my family right now.”

Police Officer Rodriguez acknowledged that she entered the building elevator with § 87(2)(b). Police Officer Rodriguez did not recall whether any discussion of jealousy based upon complexion occurred and denied that she made a statement to the effect of, “I have that shit in my family” or used the word “shit” or any profanity at this or any point in the incident.

Sergeant Corlette acknowledged that she entered the elevator with § 87(2)(b) but did not recall whether Police Officer Rodriguez was present. Sergeant Corlette further acknowledged that a discussion regarding jealousy based upon complexion took place. Sergeant Corlette denied hearing Police Officer Rodriguez or any officer make a statement to the effect of, “I have that shit in my family” and denied hearing Police Officer Rodriguez use the word “shit” or any profanity during her interactions with § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be **Unsubstantiated**.

Squad: 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date